

Present:
Mr. Justice S M Kuddus Zaman
And
Mr. Justice Md. Ali Reza
Criminal Misc Case No.69084 of 2023

Mohammad Anowar Hossen
....Petitioner

-Versus-
The State

.... Opposite Party
Md. Mohammad Azijur Rahman, Advocate
.... For the petitioner
Mr. Sujit Chatterjee, DAG
... For the State

Heard and Judgment on 13.02.2024.

S M Kuddus Zaman, J:

On an application under Section 561A of the Code of Criminal Procedure this Rule was issued calling upon the opposite parties to show cause as to why the order dated 19.02.2023 passed by the learned 1st Additional Sessions Judge, Chattogram in Session Case No.852 of 2022 arising out of Sitakundu Model Police Station Case No.35 of 17.12.2021 corresponding to GR Case No.475 of 2021 under table 10(Ga) of the section 36(1)/38 of the Madok Drabba Niontran Ain, 2018 rejecting the application of the petitioner for custody/jimma of the seized Noha Microbus bearing Registration No.Chattometro-CA-11-2334 in favour of him should not be absolute and/or pass such other or further order or orders as to this court may seem fit and proper.

Facts in short are that the petitioner filed an application to the learned 1st Additional Sessions Judge, Chattogram for getting zimma (custody) of the above mentioned seized Noha Microbus bearing Registration No.Chattometro-CA-11-2334, but the learned 1st Additional

Sessions Judge, Chattogram rejected the said petition by order 19.02.2023.

Challenging the legality and propriety of above order the petitioner has moved to this court and obtained this Rule.

Md. Mohammad Azijur Rahman, the learned Advocate for the accused-petitioner submits that the petitioner is the rightful owner of above Noha Microbus. Above Noha Microbus is kept in the open sky in front of the police station which is causing serious damage to above valuable vehicle. The petitioner wants to get jimma of above Noha Microbus and he will ensure better maintenance of the same and produce the Noha Microbus before the Court below whenever he is asked to do so. But the learned 1st Additional Sessions Judge, Chattogram has failed to appreciate above materials on record and most illegally rejected above application which is not tenable in law.

On the other hand Mr. Sujit Chatterjee, the learned Deputy Attorney General for the state opposes the petition for getting jimma stating that the seized Noha Microbus was used for transportation of narcotics.

We have considered the submissions of the learned Advocates for the respective parties and carefully examined all materials on record.

It turns out from the FIR and the Seizure list that 15645(fifteen thousand and six hundred forty five) pieces of yaba tablets were recovered from above seized Noha Microbus. On conclusion of investigation police has already submitted charge sheet in above case on 20.02.2022 under table 10(Ga) of the section 36(1)/38 of the Madok Drobba Niantran Ain, 2018 but the petitioner was not made an accused in above case. It further turns out from record that the petitioner is the owner of the seized vehicle. The ultimate fate of the above seized Noha Microbus will be determined at trail. But in the meantime above Noha Microbus which is a valuable asset requires proper maintenance. If the Noha Microbus is given in the

jimma to the petitioner who is the rightful owner of the same then the proper maintenance of the vehicle will be ensured. The petitioner shall produce above Noha Microbus to the trial court whenever he is directed to do so.

In above view of the materials on record we hold that the learned 1st Additional Sessions Judge, Chattogram committed an error in rejecting the application of the petitioner seeking jimma of above Noha Microbus which is not tenable in law.

In the result, the Rule is made absolute.

The order dated 19.02.2023 passed by the learned 1st Additional Sessions Judge, Chattogram in Session Case No.852 of 2022 arising out of Sitakundu Model Police Station Case No.35 of 17.12.2021 is set aside.

The learned 1st Additional Sessions Judge, Chattogram is directed to place above Noha Microbus in the jimma of the petitioner with condition that the petitioner shall produce the Noha Microbus to the trial court whenever he is directed to do so.

Communicate this judgment and order to the Court concerned at once.

Md. Ali Reza, J:

I agree.